

Court No. - 29

Case :- WRIT - C No. - 4343 of 2025

Petitioner :- Anil Suhala

Respondent :- Purvanchal Vidhut Vitrana Nigam Ltd, Varanasi And Another

Counsel for Petitioner :- Arun Mishra, Vijay Pratap Singh

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Ashwani Kumar Mishra, J.

Hon'ble Vipin Chandra Dixit, J.

Copy of instructions is taken on record.

Petitioner wants restoration of his electricity connection No.- 704025220593 forthwith.

Learned counsel for the petitioner places reliance upon Clause 8.1(VII) of the U.P. Electricity Supply Code to submit that the procedure in case of theft of electricity has not been followed by the respondent.

Sri N.K. Tiwari, learned counsel appearing on behalf of respondent points out that it is not a case of routine theft of electricity rather the petitioner was found utilizing electricity by directly connecting a separate cable with the main line. The meter was by passed so that the electricity consumed may not be metered. A provisional electricity bill has also been issued to the petitioner. Action under Section 135 of Electricity Act has also been taken.

Once that be so, no mandamus can be issued to restore the electricity connection, as is prayed in this petition. Remedy of petitioner would be to challenge the proceedings in appropriate forum. Provisions of Clause 8.1(VII) of the U.P. Electricity Supply Code will only apply where there is a theft of electricity on account of tempering of meter etc. This provision has no applicability where a separate unauthorized line is laid for obtaining electricity in order to avoid the consumption being metered.

Leaving it open for the petitioner to pursue appropriate remedy, this petition is consigned to records.

Order Date :- 14.2.2025/Virendra